

Madan Kumar Vishkarma v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 14 February 2025 · 2025:AHC:21619-DB · Writ - C No. 1784 of 2025 · **Writ disposed of; complaint to be placed before CGRF Varanasi; petitioner to appear 25.02.2025; hearing within one month**

HEADNOTE

A second writ repeating a challenge already relegated to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005 — here, a 19.7.2023 order carrying forward an erstwhile tenant's electricity dues as a condition of a new commercial connection — is not a vehicle to decide the billing dispute or a Section 56 bar. Where the consumer says the Varanasi Forum is not functioning, but the Presiding Officer's instructions show that it is sitting, and the complaint was sent to a wrong address, the writ court will have the licensee's counsel place the complaint before the Forum at its correct address, require the consumer to appear, and leave the Forum to hear the grievance within a fixed time. The writ is disposed of without examining the 19.7.2023 order, the tenant-dues liability, or the Section 56 plea.

FACTUAL SUMMARY

Madan Kumar Vishkarma sought a commercial electricity connection for premises he owns. Respondent no. 4, by letter dated 19 July 2023 (No. 2821/N.V.V. Kh-II, Va), held that one Mohan Lal had been his tenant, that electricity dues stood outstanding against Mohan Lal, and that those dues had to be paid before any new connection. The petitioner challenged that order in Writ-C No. 27208 of 2023, invoking Section 56 of the Electricity Act, 2003. On 17 January 2024 a Division Bench relegated him to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

He then filed this second writ (Writ-C No. 1784 of 2025) for the same reliefs, saying on a news item that the Varanasi Forum was not functioning. The licensee said the Forum was sitting and that the complaint had been sent to a wrong address.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Second writ on a demand already relegated to CGRF; alleged non-functioning and misaddressed complaint; complaint placed before the sitting Forum

QUESTION

Where a consumer, already relegated to the Clause 7.10 Forum, files a second writ on the same 19.7.2023 order saying the Varanasi CGRF is not functioning, will the High Court decide the billing and new-connection dispute?

HOLDING

No. Instructions dated 06.02.2025 of the Presiding Officer showed the Consumer Grievance Redressal Forum, Varanasi, sitting at 64-Chandrika Nagar, Sagra, Varanasi. The petitioner's complaint had been sent to a wrong address. Licensee's counsel was directed to place the complaint (Annexure-2) before that Presiding Officer; the petitioner to appear on 25.02.2025 and be heard; the Forum to endeavour to complete the hearing within one month. The writ petition was disposed of with those observations. ¶ 2-5

QUALIFIER

The Court did not examine the 19.7.2023 order, whether Mohan Lal's dues could be carried forward as a condition of a new connection, or the Section 56 plea.

FLAG Source PDF contains the 22.1.2025 listing (neutral citation 2025:AHC:21619-DB) and this 14.2.2025 disposal. The listing quotes the 17.1.2024 order in Writ-C No. 27208 of 2023 (para 3 of the listing also calls that writ 37208 of 2023), which had classified carry-forward of erstwhile tenant dues as Clause 7.7.4 and dues/new connection as Clause 7.7.2 and relegated under Clause 7.10(ii)–(iii). This Court did not re-decide those classifications.

clause-7.10-forum-ombudsman-route-for-billing-grievances A second writ repeating a 19.7.2023 challenge already relegated to CGRF is disposed of by placing the misaddressed complaint before the sitting Varanasi Forum (64-Chandrika Nagar, Sigra) with a one-month hearing, without examining tenant-dues or Section 56 issues. Same cluster as SCJ-096, SCJ-197, SCJ-217, SCJ-350. ¶ 2-5

alternative-remedy-relegation Alleged non-functioning of CGRF, disproved by the Presiding Officer's instructions, does not open the writ merits of a billing/new-connection dispute already sent to that Forum. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER MOHAN LAL'S ELECTRICITY DUES CAN BE CARRIED FORWARD AND RECOVERED FROM THE OWNER AS A CONDITION OF A NEW COMMERCIAL CONNECTION

The 19.7.2023 finding and the prayers to quash it and to release a connection without those dues were left to CGRF. ¶ 2-5

NOT DECIDED — WHETHER SECTION 56 OF THE ELECTRICITY ACT, 2003 BARS RECOVERY OF DUES MORE THAN TWO YEARS OLD, AND WHETHER K.C. NINAN DISTINGUISHES RAHAMATULLAH KHAN ON THAT PLEA

Raised in the reproduced 17.1.2024 order; that Bench left the plea to CGRF. This Court did not decide it. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan</i> (2020) 4 SCC 650 Supreme Court	Invoked in the reproduced 17.1.2024 order for the contention that dues more than two years old cannot be recovered under Section 56.	Cited by the petitioner in the earlier writ quoted in the 22.1.2025 listing; not applied in this disposal. ¶ 1	Petitioner	Referred
<i>K.C. Ninan v. Kerala State Electricity Board & Ors.</i> 2023 SCC Online SC 663 Supreme Court	Invoked in the reproduced 17.1.2024 order as a later three-judge decision said to have distinguished Rahamatullah Khan.	Cited by the licensee in the earlier writ quoted in the 22.1.2025 listing; not applied in this disposal. ¶ 1	Respondent	Referred